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* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

+ CRL.M.C. 5206/2022 & CRL.M.A. 20788/2022

KARAN BATLA AND ORS.

..... Petitioners

Through: Ms. Srishti Singla and Mr. Ayush Mittal, Advocates with the petitioners in person.

versus

STATE OF NCT OF DELHI AND ANR. & ORS. Respondents

Through: Mr. Hemant Mehla, APP for the State with SI Virender Kumar, P.S. Model Town.
Respondent no. 2 in person.

CORAM:

HON'BLE MR. JUSTICE SUDHIR KUMAR JAIN

ORDER

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13.10.2022

1. The present petition is filed under section 482 Cr.P.C. for quashing of FIR bearing no. 259/2018 registered under sections 498A/406/34 IPC at P.S. Model Town, New Delhi.
2. Issue notice.
3. Mr. Hemant Mehla, Additional Public Prosecutor assisted by Investigating Officer SI Virender Kumar, P.S. Model Town accepts notice on behalf of the respondent no.1/State. The respondent no. 2 is present in person alongwith the counsel and accepts notice.
4. The petitioner no. 1 and the respondent no. 2 got married on 04.12.2015 according to Hindu rites and customs at Delhi and out of their marriage, one female child, namely, Rimjhim was born, who is at present in

the care and custody of the respondent no.2. The petitioner no. 1 and the respondent no. 2 started to live separately since 19.09.2017.

5. The respondent no. 2 due to matrimonial differences got registered FIR bearing No. 259/2018 under sections 498A/406/34 IPC at P.S. Vijay Vihar. After completion of investigation, the charge-sheet was filed and the trial is stated to be pending in the Court of Ms. Nidhi Chitkara, MM (Mahila Court), North District, Rohini Courts, Delhi. The petitioners no. 2 to 4 are family members of the petitioner no. 1 and are present today. The petitioners and the respondent no. 2 are identified by the Investigating Officer, SI SI Virender Kumar, P.S. Model Town and their respective counsel. The respondent no. 2 also filed a petition under section 12 of the Protection of Women from Domestic Violence Act, 2005 which was stated to be pending in the Court of Ms. Nidhi Chitkara, MM (Mahila Court), North District, Rohini Courts, Delhi and the same has already been withdrawn. The respondent no. 2 also filed a petition under section 125 Cr.P.C and one execution petition which were stated to be pending in the Court of Shri Sanjay Jindal, Judge, Family Courts, North West, Rohini and these petitions are stated to be withdrawn by the respondent no. 2.

6. The petitioner no. 1 and the respondent no. 2 have settled their pending disputes vide Memorandum of Understanding dated 02.08.2022 and have agreed to dissolve their marriage by way of divorce by mutual consent as per section 13B of the Hindu Marriage Act, 1955.

7. The petitioner no. 1 has also agreed to pay Rs.10,00,000/- (rupees ten lakhs only) to the respondent no.2 towards full and final settlement of all her claims/ legal entitlements (past, present and future) arising out of marriage between the petitioner and the respondent no.2 including permanent

alimony/maintenance/istridhan etc. and other miscellaneous and legal expenses. It is stated that the petitioner no. 1 has already paid Rs.6,66,666/- to the respondent no. 2 as per the schedule as mentioned in Memorandum of Understanding dated 02.08.2022 which is also acknowledged by the respondent no. 2. The petitioner no. 1 also delivered a Demand Draft amounting to Rs.3,33,334/- bearing no. 224423 dated 27.09.2022 drawn on Canara Bank Sirsa Main Branch, Haryana towards the payment of balance settled amount to the respondent no. 2 which is accepted by the respondent no. 2.

8. The marriage between the petitioner no. 1 and the respondent no. 2 has already dissolved by way of divorce by mutual consent as per section 13B(2) of the Hindu Marriage Act, 1955 vide judgment dated 24.08.2022 in HMA bearing No. 1790/2022 titled as **Karan Batla and Hema Bhati @ Hanishka** passed by the Court of Ms. Nivedita Anil Sharma, Principal Judge, Family Court, North District, Rohini Courts, Delhi.

9. The counsel for the petitioners stated that the disputes between the petitioner no. 1 and the respondent no. 2 have already been settled vide settlement dated 02.08.2022 and the marriage between the petitioner no. 1 and the respondent no. 2 has already been dissolved as such, the present petition be allowed and FIR bearing No. 259/2018 be quashed alongwith consequential proceedings.

10. The respondent no. 2 stated that she has settled the pending disputes with the petitioner no. 1 out of her free own will and without any force and coercion and her marriage with the petitioner no. 1 has already been dissolved. The respondent no. 2 further stated that she has already received the entire settled amount as such, she does not have any objection if the

present petition is allowed and FIR bearing No. 259/2018 is quashed.

11. The Additional Public Prosecutor also stated that the petitioner no.1 and the respondent no. 2 have already settled their disputes vide settlement dated 02.08.2022 and their marriage has already been dissolved as such, he does not have any objection if the present petition is allowed and FIR bearing No. 259/2018 is quashed but he expressed his concern regarding minor child, namely, Rimjhim (girl) in view of the judgment titled as **Ganesh v. Sudhir Kumar Shrivastava and Ors. (2020) 20 SCC 787**, and stated that the respondent no. 2 can settle her claims relating to maintenance/permanent alimony/istridhan with the petitioners but she could not give up the rights which vests and shall be vesting in favour of one minor child, namely, Rimjhim (girl) relating to maintenance and other issues.

12. The Supreme Court continuously observed that the extraordinary power Under Section 482 Code of Criminal Procedure should be exercised sparingly and with great care and caution and can be used to prevent abuse of the process of the court or to secure ends of justice and the exercise of inherent powers entirely depends on facts and circumstances of each case. The power to quash the criminal proceeding or complaint or FIR may be exercised where the offender and victim have settled their dispute depending on the facts and circumstances of each case. The Supreme Court in **Sushil Suri v. Central Bureau of Investigation and another**, (2011) 5 SCC 708, considered the scope and ambit of the inherent jurisdiction of the High Court and observed as under:-

16. Section 482 Code of Criminal Procedure itself envisages three circumstances under which the

inherent jurisdiction may be exercised by the High Court, namely, (i) to give effect to an order under Code of Criminal Procedure; (ii) to prevent an abuse of the process of court; and (iii) to otherwise secure the ends of justice. It is trite that although the power possessed by the High Court under the said provision is very wide but it is not unbridled. It has to be exercised sparingly, carefully and cautiously, ex debito justitiae to do real and substantial justice for which alone the Court exists.

13. The petitioner no. 1 and the respondent no. 2 have already settled their pending disputes vide settlement dated 02.08.2022, the terms and conditions of which have already been executed and the respondent no. 2 has already received the entire settled amount. The marriage between the petitioner no. 1 and the respondent no. 2 has already been dissolved as detailed hereinabove. No useful purpose shall be served if the proceedings arising out of FIR bearing No. 259/2018 is allowed to be continued and it would be an exercise in futility.

14. After considering all facts and in the interest of justice, the present petition is allowed and FIR bearing No. 259/2018 registered under sections 498A/406/34 IPC at P.S. Model Town, New Delhi alongwith consequential proceedings including judicial proceedings is quashed. However, it is made clear that the settlement dated 02.08.2022 and the present proceeding pertaining to quashing of FIR bearing No. 259/2018 shall not affect in any manner the rights vested or shall be vesting including the maintenance/inheritance and other issues in favour of one minor child, namely, Rimjhim (girl) in terms of the judgment titled as **Ganesh v. Sudhir Kumar Shrivastava and Ors. (2020) 20 SCC 787**).

15. The present petition alongwith pending applications, if any, stands disposed of.

SUDHIR KUMAR JAIN, J

OCTOBER 13, 2022*/sk/kg*